

Kesavananda Bharati v. State of Kerala (1973)

Basic Structure Doctrine - Constitutional Jurisprudence

Advocate Manisha Gandhi | Co-Founder, Law Glimpse - Academic Study Series

Citation: (1973) 4 SCC 225 | Bench: 13 Judges

Core Ratio: Parliament has constituent amending power under Art 368, but cannot alter or destroy the basic structure or essential framework of the Constitution.

Key Takeaways for Students:

- Overruled Golak Nath (1967) while introducing the Basic Structure limit.
- Recognized Judicial Review, Federalism, Secularism, and Democracy as unamendable.
- Preserved the constitutional balance between fundamental rights and directive principles.